

CITY OF BALTIMORE
ORDINANCE **26-105**
Council Bill 26-0144

Introduced by: Councilmembers Gray, Parker, and Ramos
Cosponsored by: Councilmembers Dorsey, Conway, Middleton, Bullock, Porter, Blanchard,
Jones, Glover, Torrence, and McCray and President Cohen
Introduced and read first time: February 9, 2026
Assigned to: Public Safety Committee
Committee Report: Favorable, with Amendments
Council action: Adopted
Read second time: March 23, 2026

AN ORDINANCE CONCERNING

Baltimore City Policies and Procedures – Safe Spaces and Communities

FOR the purpose of prohibiting ~~a covered entity~~ an agency from discriminating against an individual based on actual or perceived immigration status; restricting ~~a covered entity~~ an agency from coordinating with federal immigration officials under certain circumstances; requiring ~~a covered entity~~ an agency to adhere to certain data governance standards; requiring ~~a covered entity~~ an agency to adopt a certain immigration action response plan; establishing policies and procedures for the Baltimore Police Department's interactions with federal immigration officials; defining certain terms; providing for a special effective date; and generally relating to ~~a covered entity's~~ an agency's interactions with federal immigration officials.

BY adding

Article 4 - Community Relations
Sections 4-1 to 4-6 to be under the new subtitle designation,
“Subtitle 4. Federal Immigration Enforcement”
Baltimore City Code
(Edition 2000)

BY adding

Article 17 - Police Department
Section 2-3
Baltimore City Code
(Edition 2000)

SECTION 1. BE IT ORDAINED BY THE MAYOR AND CITY COUNCIL OF BALTIMORE. That the Laws of Baltimore City read as follows:

EXPLANATION: CAPITALS indicate matter added to existing law.
[Brackets] indicate matter deleted from existing law.
Underlining indicates matter added to the bill by amendment.
~~Strike out~~ indicates matter stricken from the bill by amendment or deleted from existing law by amendment.

Council Bill 26-0144

Baltimore City Code

Article 4. Community Relations

SUBTITLE 4. FEDERAL IMMIGRATION ENFORCEMENT

§ 4-1. Definitions.

(A) *IN GENERAL.*

IN THIS SUBTITLE, THE FOLLOWING TERMS HAVE THE MEANINGS INDICATED.

(B) *AGENCY.*

“AGENCY” HAS THE MEANING STATED IN § 4-101(B) OF THE CITY GENERAL PROVISIONS ARTICLE.

~~(C) COVERED ENTITY.~~

~~“COVERED ENTITY” MEANS:~~

~~(1) ANY AGENCY THAT DELIVERS A DIRECT PUBLIC SERVICE; OR~~

~~(2) ANY LEGAL ENTITY THAT ENTERS INTO A WRITTEN AGREEMENT WITH THE CITY AND RECEIVES MONEY FROM THE CITY TO SUPPORT, IN WHOLE OR IN PART, ITS OPERATIONS.~~

~~(D) DIRECT PUBLIC SERVICE.~~

~~“DIRECT PUBLIC SERVICE” MEANS THE PROVISION OF A GOOD OR SERVICE, INCLUDING A MONETARY GOOD, THAT IS DELIVERED BY A COVERED ENTITY.~~

(C) ~~(E)~~ *IMMIGRATION ENFORCEMENT ACTION.*

“IMMIGRATION ENFORCEMENT ACTION” MEANS ANY AND ALL EFFORTS CONDUCTED BY AN IMMIGRATION OFFICIAL FOR THE PURPOSE OF LOCATING, APPREHENDING, DETAINING, OR REMOVING AN INDIVIDUAL WHO THE IMMIGRATION OFFICIAL BELIEVES IS VIOLATING FEDERAL IMMIGRATION LAW.

(D) ~~(F)~~ *IMMIGRATION ENFORCEMENT ACTION RESPONSE PLAN; PLAN.*

“IMMIGRATION ENFORCEMENT ACTION RESPONSE PLAN” OR “PLAN” MEANS A SET OF POLICIES AND PROCEDURES ADOPTED BY ~~A COVERED ENTITY~~ AN AGENCY TO GUIDE THE ~~COVERED ENTITY’S~~ AGENCY’S PREPARATION FOR AND RESPONSE TO AN INTERACTION WITH AN IMMIGRATION OFFICIAL.

Council Bill 26-0144

(E) ~~(G)~~ IMMIGRATION OFFICIAL.

"IMMIGRATION OFFICIAL" MEANS ANY EMPLOYEE OF THE UNITED STATES DEPARTMENT OF HOMELAND SECURITY, ANY EMPLOYEE OF UNITED STATES IMMIGRATION AND CUSTOMS ENFORCEMENT, OR ANY FEDERAL OFFICIAL WHO ENGAGES IN AN IMMIGRATION ENFORCEMENT ACTION.

§ 4-2. GENERAL REQUIREMENTS.

(A) IN GENERAL.

~~A COVERED ENTITY~~ AN AGENCY MAY NOT, UNLESS REQUIRED BY FEDERAL LAW, STATE LAW, OR A COURT ORDER:

- (1) ENTER INTO AN AGREEMENT FOR THE PURPOSE OF HOUSING INDIVIDUALS SUBJECT TO DETENTION ON CIVIL IMMIGRATION CHARGES;
- (2) ENTER INTO AN AGREEMENT FOR ANY PURPOSE RELATED TO THE ENFORCEMENT OF FEDERAL IMMIGRATION LAWS;
- (3) EXPEND OR USE CITY FUNDS, RESOURCES, OR PERSONNEL TO INVESTIGATE, QUESTION, APPREHEND, DETAIN, OR ARREST AN INDIVIDUAL SOLELY FOR AN ACTUAL OR SUSPECTED VIOLATION OF FEDERAL IMMIGRATION LAW;
- (4) CONDITION THE PROVISION OF A CITY SERVICE OR BENEFIT ON THE ACTUAL OR PERCEIVED CITIZENSHIP OR IMMIGRATION STATUS OF THE INDIVIDUAL SEEKING THAT SERVICE OR BENEFIT;
- (5) ALLOW AN IMMIGRATION OFFICIAL TO ACCESS A SPACE THAT IS NOT REGULARLY ACCESSIBLE TO THE PUBLIC WITHIN A FACILITY OPERATED BY ~~A COVERED ENTITY~~; AN AGENCY;
- (6) ALLOW AN IMMIGRATION OFFICIAL TO ACCESS AN INDIVIDUAL WHO IS BEING DETAINED BY OR IS IN THE CUSTODY OF ~~A COVERED ENTITY~~; AN AGENCY;
- (7) ALLOW AN IMMIGRATION OFFICIAL TO USE ~~A COVERED ENTITY'S~~ AN AGENCY'S FACILITIES, INFORMATION, OR EQUIPMENT FOR AN IMMIGRATION ENFORCEMENT ACTION PURPOSE; ~~OR~~
- (8) ALLOW AN IMMIGRATION OFFICIAL TO USE ANY SPACE OWNED, LEASED, OPERATED, OR CONTROLLED BY THE AGENCY, INCLUDING A PARK, A RECREATIONAL AREA, OR ANOTHER PUBLIC FACILITY, FOR THE PURPOSE OF STAGING, COORDINATING, PLANNING, OR CONDUCTING AN IMMIGRATION ENFORCEMENT ACTION WITHOUT A VALID PERMIT ISSUED BY THE CITY; OR
- (9) ~~(8)~~ ALLOW AN IMMIGRATION OFFICIAL TO ACCESS ANY INFORMATION REGARDING AN INDIVIDUAL WHO IS THE SUBJECT OF AN IMMIGRATION ENFORCEMENT ACTION, UNLESS THE INDIVIDUAL HAS CONSENTED TO THE DISCLOSURE.

Council Bill 26-0144

(B) *DISCRIMINATION PROHIBITED.*

~~A COVERED ENTITY~~ AN AGENCY MAY NOT COERCE, INTIMIDATE, THREATEN, OR ACT WITH BIAS AGAINST ANY INDIVIDUAL BASED ON ACTUAL OR PERCEIVED CITIZENSHIP OR IMMIGRATION STATUS OF THE INDIVIDUAL OR THEIR FAMILY.

(C) *REQUEST FROM IMMIGRATION OFFICIAL.*

~~IF A COVERED ENTITY~~ AN AGENCY RECEIVES A REQUEST FROM AN IMMIGRATION OFFICIAL FOR INFORMATION REGARDING AN INDIVIDUAL, TO DETAIN AN INDIVIDUAL, OR TO NOTIFY IMMIGRATION OFFICIALS OF THAT INDIVIDUAL'S LOCATION, THE ~~COVERED ENTITY~~ AGENCY SHALL, UNLESS PROHIBITED BY FEDERAL LAW, STATE LAW, OR A COURT ORDER:

(1) ASK FOR AND DOCUMENT THE IMMIGRATION OFFICIAL'S IDENTIFICATION;

(2) IF THE REQUEST MADE BY AN IMMIGRATION OFFICIAL WAS IN WRITING, PROVIDE A COPY OF THAT REQUEST TO THE INDIVIDUAL IN QUESTION; AND

(3) NOTIFY THE INDIVIDUAL IN QUESTION WITHIN 48 HOURS.

§4-3. DATA GOVERNANCE.

~~A COVERED ENTITY~~ AN AGENCY MAY NOT:

(1) ASK AN INDIVIDUAL TO DISCLOSE THEIR CITIZENSHIP OR IMMIGRATION STATUS UNLESS THE INFORMATION IS REQUIRED BY A LAW, A COURT ORDER, OR IS NECESSARY FOR A CITY FUNCTION;

(2) STORE ANY INFORMATION REGARDING AN INDIVIDUAL'S CITIZENSHIP OR IMMIGRATION STATUS, UNLESS THE INFORMATION IS REQUIRED BY A LAW, A COURT ORDER, OR IS NECESSARY FOR A CITY FUNCTION; OR

(3) INVESTIGATE OR ASSIST IN AN INVESTIGATION REGARDING AN INDIVIDUAL'S CITIZENSHIP OR IMMIGRATION STATUS, UNLESS THE INQUIRY OR INVESTIGATION IS REQUIRED BY LAW, A COURT ORDER, OR A JUDICIAL WARRANT.

§ 4-4. IMMIGRATION ENFORCEMENT ACTION RESPONSE PLAN.

(A) *IN GENERAL.*

~~A COVERED ENTITY~~ IN CONSULTATION WITH THE MAYOR'S OFFICE OF IMMIGRANT AFFAIRS, AN AGENCY SHALL CREATE AND ADOPT AN IMMIGRATION ENFORCEMENT ACTION RESPONSE PLAN TO COMPLY WITH THE PROVISIONS OF THIS SUBTITLE.

(B) *DESIGNATED OFFICIAL.*

~~A COVERED ENTITY~~ AN AGENCY SHALL DESIGNATE AN OFFICIAL WITHIN THE ~~ENTITY~~ AGENCY WHO SHALL SERVE AS THE PRIMARY POINT OF CONTACT FOR ISSUES RELATED TO IMMIGRATION ENFORCEMENT ACTIONS.

Council Bill 26-0144

(C) *CONTENTS OF PLAN.*

~~A COVERED ENTITY'S~~ AN AGENCY'S IMMIGRATION ACTION RESPONSE PLAN SHALL INCLUDE:

- (1) A RESPONSE PROTOCOL FOR COMMUNICATION AND INTERACTION WITH AN IMMIGRATION OFFICIAL;
- (2) PREVENTATIVE MEASURES THE ~~ENTITY~~ AGENCY WILL TAKE TO PREVENT AN IMMIGRATION OFFICIAL FROM ACCESSING A SPACE THAT IS NOT REGULARLY ACCESSIBLE TO THE PUBLIC, UNLESS THE IMMIGRATION OFFICIAL DISPLAYS A JUDICIAL WARRANT OR EXIGENT CIRCUMSTANCES REQUIRE SUCH ACCESS; AND
- (3) THE STEPS THE ~~COVERED ENTITY~~ AGENCY WILL TAKE TO ENSURE ALL EMPLOYEES ARE INFORMED OF THE PLAN AND REMAIN IN COMPLIANCE WITH THE PLAN.

(D) *PLAN TO BE RETAINED.*

~~A COVERED ENTITY~~ AN AGENCY SHALL SUBMIT A COPY OF ITS IMMIGRATION ACTION RESPONSE PLAN TO THE MAYOR'S OFFICE OF IMMIGRANT AFFAIRS.

§ 4-5. REPORTING.

(A) *IN GENERAL.*

NO LATER THAN JANUARY 1 OF EACH YEAR, AN AGENCY SHALL SUBMIT TO THE MAYOR'S OFFICE OF IMMIGRANT AFFAIRS A REPORT THAT INCLUDES THE FOLLOWING:

- (1) THE NUMBER OF REQUESTS FOR INFORMATION OR ACCESS TO FACILITIES THAT THE AGENCY RECEIVED FROM IMMIGRATION OFFICIALS, IF ANY, AND HOW THE AGENCY RESPONDED TO EACH REQUEST; AND
- (2) THE NUMBER OF TIMES THE AGENCY VIOLATED THE TERMS OF THIS SUBTITLE, IF ANY.

(B) *REPORTS TO BE COMPILED AND SUBMITTED.*

NO LATER THAN ~~MARCH~~ APRIL 1 OF EACH YEAR, THE MAYOR'S OFFICE OF IMMIGRANT AFFAIRS SHALL COMPILE THE REPORTS RECEIVED PURSUANT TO SUBSECTION (A) OF THIS SECTION AND SUBMIT A COMPREHENSIVE REPORT TO THE MAYOR AND CITY COUNCIL.

(C) *ANNUAL REVIEW BY CITY SOLICITOR.*

IF THIS SUBTITLE IS PREEMPTED BY ANY CHANGE IN FEDERAL, STATE, OR INTERNATIONAL LAW, THE CITY SOLICITOR SHALL PROVIDE NOTICE OF THE PREEMPTION TO THE MAYOR AND CITY COUNCIL.

Council Bill 26-0144

§ 4-6. TRAINING.

(A) *IN GENERAL.*

THE MAYOR'S OFFICE OF IMMIGRANT AFFAIRS SHALL DEVELOP AND DELIVER TO ALL EMPLOYEES OF ~~A COVERED ENTITY~~ AN AGENCY A TRAINING COURSE REGARDING:

(1) HOW AN EMPLOYEE SHALL RESPOND IN THE EVENT THAT AN IMMIGRATION OFFICIAL ENTERS A FACILITY OPERATED BY ~~A COVERED ENTITY~~; AN AGENCY;

(2) THE RIGHTS AND RESPONSIBILITIES OF ~~A COVERED ENTITY~~ AN AGENCY DURING AN INTERACTION WITH AN IMMIGRATION OFFICIAL; AND

(3) THE PROVISIONS OF THIS SUBTITLE.

(B) *BALTIMORE POLICE DEPARTMENT.*

THE BALTIMORE POLICE DEPARTMENT IS EXCLUDED FROM THE TRAINING REQUIREMENTS IN SUBSECTION (A) OF THIS SECTION IF IT DEVELOPS AND DELIVERS AN EQUIVALENT TRAINING DESIGNED FOR POLICE OPERATIONS.

Article 17. Police Department

Subtitle 2. Police Department

§ 2-3. IMMIGRATION ENFORCEMENT POLICIES AND PROCEDURES.

(A) *DEFINITIONS.*

(1) *IN GENERAL.*

IN THIS SUBTITLE, THE FOLLOWING TERMS HAVE THE MEANINGS INDICATED.

(2) *IMMIGRATION ENFORCEMENT ACTION.*

"IMMIGRATION ENFORCEMENT ACTION" HAS THE MEANING STATED IN § 4-1 OF CITY CODE ARTICLE 4.

(3) *IMMIGRATION OFFICIAL.*

"IMMIGRATION OFFICIAL" HAS THE MEANING STATED IN § 4-1 OF ARTICLE 4 OF CITY CODE ARTICLE 4.

(B) *IN GENERAL.*

THE DEPARTMENT MAY NOT ENGAGE IN, ASSIST, OR SUPPORT IMMIGRATION ENFORCEMENT ACTIONS UNLESS:

Council Bill 26-0144

(1) THE DEPARTMENT IS REQUIRED TO EXECUTE A CRIMINAL WARRANT OR COURT ORDER ISSUED BY A FEDERAL OR STATE ~~COURT;~~ JUDGE; OR

(2) AS OTHERWISE REQUIRED BY LAW, INCLUDING THE TERMS OF THE BALTIMORE CITY CONSENT DECREE.

(C) *DE-ESCALATION.*

~~THE IN ACCORDANCE WITH DEPARTMENT POLICY, THE~~ DEPARTMENT MAY BE PRESENT AT THE SCENE OF AN IMMIGRATION ENFORCEMENT ACTION TO DE-ESCALATE ANY DIRECT THREAT TO LIFE OR PUBLIC SAFETY.

(D) *IMMIGRATION OFFICIAL INTERACTION PROCEDURE.*

IF THE DEPARTMENT INTERACTS WITH AN IMMIGRATION OFFICIAL WHO IS CONDUCTING AN IMMIGRATION ACTION, THE DEPARTMENT SHALL, IN ACCORDANCE WITH ANY APPLICABLE LAW:

(1) INQUIRE WHETHER ANY INDIVIDUAL BEING HELD BY THE IMMIGRATION OFFICIAL IS BEING HELD PURSUANT TO A WARRANT, A COURT ORDER, OR PROBABLE CAUSE;

(2) REQUEST THE NAME OF ANY INDIVIDUAL BEING HELD BY THE IMMIGRATION OFFICIAL;

(3) DOCUMENT THE INTERACTION ON THE OFFICER'S BODY-WORN CAMERA, IN ADHERENCE WITH DEPARTMENT POLICY; AND

(4) REQUEST AND DOCUMENT THE IMMIGRATION OFFICIAL'S LAW ENFORCEMENT CREDENTIALS AND VERIFY THEIR IDENTITY BY REQUESTING THEY REMOVE ANY MASK OR FACE COVERING. CREDENTIALS.

SECTION 2. AND BE IT FURTHER ORDAINED, That within 90 days of the taking effect of this Ordinance, each ~~covered entity~~ agency shall:

(1) review all applications, questionnaires, interviews, or other forms used in relations to its benefits or services and remove any questions regarding citizenship or immigration status, unless it is necessary for a City function;

(2) delete any information regarding an individual's citizenship or immigration status, unless it is necessary for a City function; and

(3) review its confidentiality practices and ensure they comply with the terms of this Ordinance.

~~**SECTION 3. AND BE IT FURTHER ORDAINED,** That the provisions of this Ordinance do not apply to any entity that currently has a written agreement with the City and receives money from the City to support, in whole or in part, its operations, until such time that the entity renews its existing agreement with the City or enters into a new written agreement with the City.~~

Council Bill 26-0144

1 **SECTION 4. 3. AND BE IT FURTHER ORDAINED,** That this Ordinance takes effect on the date
2 it is enacted.

Council Bill 26-0144

Certified as duly passed this 23rd day of March, 2026



President, Baltimore City Council

Certified as duly delivered to His Honor, the Mayor,

this 24th day of March, 2026



Chief Clerk

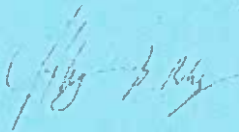
Approved this 7th day of May, 2026



Mayor, Baltimore City

Approved for Form and Legal Sufficiency.

this 24th day of March, 2026



Chief Solicitor